WELLS FARGO BANK, NA v LACY

22CF14003

PLAINTIFF'S MOTION TO AMEND JUDGMENT

On February 14, 2024, a default judgment was entered in favor of Plaintiff and against Defendant in the amount of $11,223.43 (comprised of $10,740.58 in damages, $474.85 in court costs and $8.00 in attorney fees). Plaintiff files the instant motion to correct a scrivener's error regarding attorney fees and requests the amount be amended to $800.00.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall Include the following language in the notice:

> 3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence Is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall Include the following language in the notice:
>
> **Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court** [emphasis in original.]
>
> Failure to include this language In the notice may be a basis for the Court to deny the motion.

In the instant matter the Court finds that the unopposed Motion to Amend Judgment though set on Law and Motion calendar is akin to an administrative, or clerical matter, and inclusion of notice in motion is excused.

Plaintiff argues that the $8.00 in attorney's fees was a clerical scrivener's error that is patently obvious when considering Local Rule 3.3.3. Under this rule, an attorney's fees awarded in a default shall be calculated as "25 percent of first $1,000 (with minimum fee of $150); 20 percent of next $4,000; 15 percent of next $5,000; 10 percent of next $10,000; 5 percent of next $30,000; and 2 percent of the amount over $50,000." Under this framework, a judgment of $10,000.00 would warrant attorney's fees of approximately $1,800.00.

The original request for $8.00 is an obvious error. The actual request for $800.00 is reasonable and well within the framework of the local rule for awarding attorney's fees. Accordingly, Plaintiff's motion is **GRANTED**.

The Clerk shall provide notice of these Rulings to the parties forthwith. The Court intends to sign the submitted Amended Judgment.

DISCOVER BANK v MASON

CF8837

DEFENDANT'S CLAIM OF EXEMPTION

On April 29, 2010, Discover Bank ("Discover") obtained a judgment against Laverne Mason ("Mason") in the amount of $10,609.80, with a current balance to satisfy of $18,204.00. After Discover filed a renewal of judgment, the Court issued a new Writ of Execution on April 26, 2024. After Lassen County withheld funds, Mason filed a claim of exemption which Discover opposes.

Code of Civil Procedure section 706.050(a) states:

> Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week; (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

Mason states that her monthly income is $4,881.19. From this monthly amount, $415.47 is deducted for federal and state withholding, $115.37 for state tax, $302.18 for health insurance, and $2.00 for "RPESJC Duc." Mason therefore states that her monthly take home pay is $4,046.21. After expenses, Mason states that her disposable income is $105.16 per month. Mason does not specifically identify the source of her monthly income nor does she state whether she is paid monthly, bi-weekly, or weekly.

Mason seeks to have her County Employee Retirement Benefits and her Social Security Benefits declared exempt pursuant to Code of Civil Procedure section 704.110 and 42 U.S.C. section 407.

Code of Civil Procedure section 704.110(d) provides:

> All amounts received by any person, a resident of the state, as a public retirement benefit or as a return of contributions and interest thereon from the United States or a public entity or from a public retirement system are exempt.

42 U.S.C section 407 provides that the social security payments are protected from execution and garnishment.